

26CHCV00117 26CHCV00117

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-14

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C07%2F14%2F2026

Source SHA-256: 35f7016cea04f22da1e6c6b33b6ee5ba7deee9dc36d8035aef769e372098f2

Case Number: 26CHCV00117 Hearing Date: July 14, 2026 Dept: F47

Dept. F47

Date: 7/14/26

Case #26CHCV00117

MOTION FOR

LEAVE TO FILE A SECOND AMENDED COMPLAINT

Motion filed on 6/16/26.

MOVING PARTY: Plaintiff Leya Kennedy

RESPONDING PARTY: Defendants Emily Sara Karp and Gilbert Karp

NOTICE: ok

RELIEF REQUESTED:

An order granting Plaintiff Leya Kennedy leave to file a Second Amended Complaint.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of a traffic collision which occurred on 12/6/24. Plaintiff Leya Kennedy

(Plaintiff) contends that on 12/6/24, at approximately 6:45 p.m., Defendant Emily Sarah Karp (Emily) was operating her vehicle southbound on Interstate 5 at speeds of approximately 95 to 100 miles per hour with a blood alcohol concentration of 0.20 percent. Emily crashed the front of her vehicle into the rear of Plaintiff's vehicle propelling Plaintiff's vehicle into a concrete barrier. California Highway Patrol Officer William Leisorek responded to the scene, observed signs of intoxication, and placed Emily under arrest after she failed field sobriety tests. Emily was subsequently charged with felony DUI causing injury under Vehicle Code sections 23153(a) and 23153(b), to which she pleaded nolo contendere and was convicted. As a result of Defendant's conduct, Plaintiff sustained injuries, including airbag burns and abrasions to her left leg, right leg, right hand, and left wrist, a diffuse traumatic brain injury, acute musculoskeletal injuries to her cervical and lumbar spine requiring interventional pain management, radiculopathy, and post-traumatic stress disorder. Plaintiff was 20 years old when the crash occurred.

On 1/12/26, Plaintiff filed this action against Emily and Defendant Gilbert Karp (Gilbert) (collectively, Defendants) for: (1) Negligence, (2) Negligence Per Se – California Vehicle Code 22350; and (3) Punitive Damages. On 2/19/26, Plaintiff filed her First Amended Complaint asserting the same claims. On 3/12/26, Defendants filed and served a Motion to Strike Portions of Plaintiff's First Amended Complaint related to punitive damages. The motion to strike is scheduled for hearing on 7/15/26, the day after the hearing on the instant motion. Since the filing of the First Amended Complaint, Plaintiff contends that she had discovered new evidence which support her punitive damage allegations, the liability of proposed Defendant Maritza Karp (Maritza) and causes of action for negligence and negligent entrustment. (See Staskus Decl.). The proposed Second Amended Complaint alleges causes of action for: (1) Negligence against all Defendants and Does 1-50 and (2) Negligent Entrustment against Gilbert and Maritza and Does 1-50.

Despite meet and confer efforts, the parties could not come to an agreement regarding allowing Plaintiff to file the proposed Second Amended Complaint and taking the motion to strike off calendar. (Staskus Decl.). Therefore, on 6/16/26, Plaintiff filed (served on 6/15/26) the instant motion seeking an order granting Plaintiff leave to file a Second Amended Complaint.

Defendants have not opposed or otherwise responded to the instant motion.

ANALYSIS

Leave to amend pleadings is to be liberally granted so that cases may be decided on their merits.

See CCP 473(a); CCP 576.

Unless there is prejudice to the opposing side, it is an abuse of discretion to deny leave to amend. See Higgins (1981) 123 CA3d 558, 564-565; Atkinson (2003) 109 CA4th 739. Here, there is no evidence of undue delay in seeking leave to amend and/or that Defendants will be prejudiced by the granting of the motion.

CONCLUSION

The motion is granted.

Plaintiff is ordered to separately file the Second Amended Complaint which is attached to the declaration of John M. Staskus as Exhibit F.

Due to the granting of the instant motion and the filing of the Second Amended Complaint, Defendants Emily Sarah Karp and Gilber Karp's Motion to Strike Portions of Plaintiff's First Amended Complaint scheduled for hearing on 7/15/26 is advanced to 7/14/26 and placed off calendar as moot. The granting of the instant motion does not preclude Defendants' right to challenge the Second Amended Complaint by way of demurrer, motion to strike, etc., if they so choose.